

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

April 8, 2025

ENGROSSED HOUSE
BILL NO. 2105

By: Osburn and West (Tammy) of
the House

and

Rader of the Senate

An Act relating to felony reclassification; amending Sections 5, 6, 9, 10, 12, 13, and 17, Chapters 366, O.S.L. 2024 (21 O.S. Supp. 2024, Sections 20E, 20F, 20I, 20J, 20L, 20M, and 20Q), which relate to felony classification of criminal offenses; updating internal statutory citations; modifying classifications for certain crimes; requiring, inclusion of certain instructions to the jury; amending 22 O.S. 2021, Section 977, which relates to judgment on conviction; modifying information to be included in judgment; amending 57 O.S. 2021, Section 37, which relates to correctional facilities; requiring default to lowest classification level or minimum sentence under certain circumstances; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 5, Chapter 366, O.S.L.
2024 (21 O.S. Supp. 2024, Section 20E), is amended to read as
follows:

Section 20E. A. Upon the effective date of this act, Class A3 shall include the following criminal offenses:

1 1. Domestic assault and battery with a deadly weapon, as
2 provided for in paragraph 2 of subsection D of Section 644 of Title
3 21 of the Oklahoma Statutes;

4 2. Second or subsequent conviction of domestic abuse against a
5 pregnant woman with knowledge of the pregnancy, as provided for in
6 subsection E of Section 644 of Title 21 of the Oklahoma Statutes;

7 3. Aggravated assault and battery upon a police officer,
8 sheriff, deputy sheriff or highway patrolman, corrections personnel,
9 or any state peace officer, as provided for in subsection A of
10 Section 650 of Title 21 of the Oklahoma Statutes;

11 4. Shooting with the intent to kill, as provided for in
12 subsection A of Section 652 of Title 21 of the Oklahoma Statutes;

13 5. Using a vehicle to facilitate the intentional discharge of a
14 firearm, crossbow, or other weapon, as provided for in subsection B
15 of Section 652 of Title 21 of the Oklahoma Statutes;

16 6. Assault and battery with a deadly weapon, as provided for in
17 subsection C of Section 652 of Title 21 of the Oklahoma Statutes;

18 7. Maiming, as provided for in Section ~~752~~ 751 of Title 21 of
19 the Oklahoma Statutes;

20 8. Sexual abuse by a caretaker, as provided for in paragraph 2
21 of subsection B of Section 843.1 of Title 21 of the Oklahoma
22 Statutes;

23 9. Child abuse, as provided for in subsection A of Section
24 843.5 of Title 21 of the Oklahoma Statutes;

1 10. Enabling child abuse, as provided for in subsection B of
2 Section 843.5 of Title 21 of the Oklahoma Statutes;

3 11. Child sexual abuse, as provided for in subsection E of
4 Section 843.5 of Title 21 of the Oklahoma Statutes;

5 12. Enabling child sexual abuse, as provided for in subsection
6 G of Section 843.5 of Title 21 of the Oklahoma Statutes;

7 13. Child sexual exploitation, as provided for in subsection H
8 of Section 843.5 of Title 21 of the Oklahoma Statutes;

9 14. Enabling child sexual exploitation, as provided for in
10 subsection J of Section 843.5 of Title 21 of the Oklahoma Statutes;

11 15. Lewd or indecent proposals or acts to a child, as provided
12 for in subsection A of Section 1123 of Title 21 of the Oklahoma
13 Statutes;

14 16. Terrorism, as provided for in subsection B of Section
15 1268.2 of Title 21 of the Oklahoma Statutes;

16 17. Conspiracy to commit terrorism, as provided for in
17 subsection A of Section 1268.3 of Title 21 of the Oklahoma Statutes;

18 18. Any person above the age of eighteen (18) who, on campuses
19 or public school grounds, advocates revolution, sabotage, force and
20 violation, sedition, treason, or the overthrow of the United States
21 government, as provided for in subsection B of Section 1327 of Title
22 21 of the Oklahoma Statutes;

23 19. Arson in the first degree, as provided for in subsection A
24 of Section 1401 of Title 21 of the Oklahoma Statutes;

1 20. Arson while manufacturing, attempting to manufacture, or
2 endeavoring to manufacture a controlled dangerous substance, as
3 provided for in subsection B of Section 1401 of Title 21 of the
4 Oklahoma Statutes; and

5 21. Causing personal injury while committing an act of arson,
6 as provided for in Section 1405 of Title 21 of the Oklahoma
7 Statutes.

8 B. Any person convicted of a Class A3 criminal offense set
9 forth in this section shall be punished in accordance with the
10 corresponding penalties provided for in the Oklahoma Statutes.

11 SECTION 2. AMENDATORY Section 6, Chapter 366, O.S.L.
12 2024 (21 O.S. Supp. 2024, Section 20F), is amended to read as
13 follows:

14 Section 20F. A. Upon the effective date of this act, Class B1
15 shall include the following criminal offenses:

16 1. Accessory to murder in the second degree, as provided for in
17 paragraph 5 of Section 175 of Title 21 of the Oklahoma Statutes;

18 2. Rescuing or attempting to rescue a prisoner charged or
19 convicted of a felony, as provided for in paragraph 1 of Section 521
20 of Title 21 of the Oklahoma Statutes;

21 3. Aiding suicide, as provided for in Section 813 of Title 21
22 of the Oklahoma Statutes;

1 4. Aiding suicide by furnishing the person with deadly weapons
2 or poisonous drugs, as provided for in Section 814 of Title 21 of
3 the Oklahoma Statutes;

4 5. Mingling poison, controlled dangerous substances, or sharp
5 objects harmful to human life with any food, drink, medicine, or
6 water, as provided for in Section 832 of Title 21 of the Oklahoma
7 Statutes;

8 6. Abuse, financial neglect, neglect, or exploitation by a
9 caretaker, as provided for in paragraph 1 of subsection B of Section
10 843.1 of Title 21 of the Oklahoma Statutes;

11 7. ~~Exploitation of an elderly person or disabled adult, as~~
12 ~~provided for in Section 843.4 of Title 21 of the Oklahoma Statutes;~~

13 ~~8.~~ Engaging in child neglect, as provided for in subsection C
14 of Section 843.5 of Title 21 of the Oklahoma Statutes;

15 ~~9.~~ 8. Enabling child neglect, as provided for in subsection D
16 of Section 843.5 of Title 21 of the Oklahoma Statutes;

17 ~~10.~~ 9. Forcible sodomy, as provided for in subsection A of
18 Section 888 of Title 21 of the Oklahoma Statutes;

19 ~~11.~~ 10. Sodomy by a person over eighteen (18) years of age upon
20 a person under sixteen (16) years of age, as provided for in
21 paragraph 1 of subsection B of Section 888 of Title 21 of the
22 Oklahoma Statutes;

23 ~~12.~~ 11. Sodomy upon a person incapable through mental illness
24 or unsoundness of mind to give legal consent, as provided for in

1 paragraph 2 of subsection B of Section 888 of Title 21 of the
2 Oklahoma Statutes;

3 ~~13.~~ 12. Sodomy with any person by means of force, violence, or
4 threats of force or violence, as provided for in paragraph 3 of
5 subsection B of Section 888 of Title 21 of the Oklahoma Statutes;

6 ~~14.~~ 13. Sodomy upon a person under the legal custody,
7 supervision, or authority of a state agency, county, municipality,
8 or political subdivision of the state, as provided for in paragraph
9 4 of subsection B of Section 888 of Title 21 of the Oklahoma
10 Statutes;

11 ~~15.~~ 14. Sodomy upon a person at least sixteen (16) years of age
12 but less than twenty (20) years of age and who is a student of any
13 public or private secondary school, junior high, high school, or
14 public vocational school with a person eighteen (18) years of age or
15 older and who is employed by the same school system, as provided for
16 in paragraph 5 of subsection B of Section 888 of Title 21 of the
17 Oklahoma Statutes;

18 ~~16.~~ 15. Sodomy upon a person who is unconscious, as provided
19 for in paragraph 7 of subsection B of Section 888 of Title 21 of the
20 Oklahoma Statutes;

21 ~~17.~~ 16. Sodomy upon a person who is intoxicated by a narcotic
22 or anesthetic agent administered by or with the privity of the
23 accused, as provided for in paragraph 8 of subsection B of Section
24 888 of Title 21 of the Oklahoma Statutes;

1 ~~18.~~ 17. Procuring or causing the participation of a minor in
2 child pornography or possessing, procuring, manufacturing, selling,
3 or distributing child pornography, as provided for in Section 1021.2
4 of Title 21 of the Oklahoma Statutes;

5 ~~19.~~ 18. Permitting or consenting to the participation of a
6 minor in child pornography by a parent, guardian, or individual
7 having custody, as provided for in Section 1021.3 of Title 21 of the
8 Oklahoma Statutes;

9 ~~20.~~ 19. Buying, procuring, or possessing child pornography, as
10 provided for in Section 1024.2 of Title 21 of the Oklahoma Statutes;

11 ~~21.~~ 20. Child ~~prostitution~~ sex trafficking, as provided for in
12 subsection B of Section 1029 of Title 21 of the Oklahoma Statutes;

13 ~~22.~~ 21. Receiving or offering to agree to receive a child for
14 purposes of prostitution, as provided for in paragraph 2 of
15 subsection A of Section 1087 of Title 21 of the Oklahoma Statutes;

16 ~~23.~~ 22. Transporting or aiding in the transport of a child for
17 prostitution, as provided for in paragraph 3 of subsection A of
18 Section 1087 of Title 21 of the Oklahoma Statutes;

19 ~~24.~~ 23. Permitting the prostitution of a child in any house,
20 building, room, other premises, or any conveyances under the control
21 of a person, as provided for in paragraph 2 of subsection B of
22 Section 1087 of Title 21 of the Oklahoma Statutes;

23 ~~25.~~ 24. Causing, inducing, persuading, or encouraging a child
24 by promise, threats, violence, or any device or scheme to engage in

1 prostitution, as provided for in paragraph 1 of subsection A of
2 Section 1088 of Title 21 of the Oklahoma Statutes;

3 ~~26.~~ 25. Keeping, holding, detaining, restraining, or compelling
4 a child to engage in prostitution, as provided for in paragraph 2 of
5 subsection A of Section 1088 of Title 21 of the Oklahoma Statutes;

6 ~~27.~~ 26. Keeping, holding, detaining, restraining, or compelling
7 a child to engage in prostitution for purposes of compelling the
8 child to pay, liquidate, or cancel any debts, dues, or obligations
9 incurred by the child, as provided for in paragraph 3 of subsection
10 A of Section 1088 of Title 21 of the Oklahoma Statutes;

11 ~~28.~~ 27. Permitting the keeping, holding, detaining, or
12 restraining of a child for prostitution in any house, building,
13 room, other premises, or any conveyances under the control of a
14 person, as provided for in paragraph 2 of subsection B of Section
15 1088 of Title 21 of the Oklahoma Statutes;

16 ~~29.~~ 28. Advocating the revolution, sabotage, force and
17 violation, sedition, treason, or overthrow of the government of the
18 United States, as provided for in Section 1266 of Title 21 of the
19 Oklahoma Statutes;

20 ~~30.~~ 29. Commit, attempt to commit, or aid in the commission of
21 any act intended to overthrow, destroy, or alter the government of
22 the United States, as provided for in Section 1266.4 of Title 21 of
23 the Oklahoma Statutes;

1 ~~31.~~ 30. Biochemical terrorism, as provided for in subsection D
2 of Section 1268.2 of Title 21 of the Oklahoma Statutes;

3 ~~32.~~ 31. Biochemical assault when the person knows the substance
4 is toxic, noxious, or lethal to humans, as provided for in
5 subsection C of Section 1268.5 of Title 21 of the Oklahoma Statutes;

6 ~~33.~~ 32. Second or subsequent conviction of using a firearm
7 while committing a felony, as provided for in subsection A of
8 Section 1287 of Title 21 of the Oklahoma Statutes;

9 ~~34.~~ 33. Discharging a firearm or other deadly weapon at or into
10 a dwelling or building used for public or business purposes, as
11 provided for in Section 1289.17A of Title 21 of the Oklahoma
12 Statutes;

13 ~~35.~~ 34. Directing, advising, encouraging, or soliciting other
14 persons to commit acts of force or violence while participating in a
15 riot, as provided for in paragraph 4 of Section 1312 of Title 21 of
16 the Oklahoma Statutes;

17 ~~36.~~ 35. Burglary in the first degree, as provided for in
18 Section 1431 of Title 21 of the Oklahoma Statutes;

19 ~~37.~~ 36. Seizing or exercising control of any bus by force or
20 violence or by threats of force or violence, as provided for in
21 subsection A of Section 1903 of Title 21 of the Oklahoma Statutes;

22 ~~38.~~ 37. Using a dangerous or deadly weapon while seizing or
23 exercising control of a bus or when intimidating, threatening,
24

1 assaulting, or battering a bus driver, as provided for in subsection
2 C of Section 1903 of Title 21 of the Oklahoma Statutes;

3 ~~39.~~ 38. Receiving, acquiring, and concealing proceeds derived
4 from unlawful activities in an amount of more than Fifty Thousand
5 Dollars (\$50,000.00), as provided for in paragraph 4 of subsection G
6 of Section 2001 of Title 21 of the Oklahoma Statutes;

7 ~~40.~~ 39. Participating in racketeering activities, as provided
8 for in subsection A of Section 1403 of Title 22 of the Oklahoma
9 Statutes;

10 ~~41.~~ 40. Acquiring or maintaining any interest in or control of
11 any enterprise or real property through racketeering activities, as
12 provided for in subsection B of Section 1403 of Title 22 of the
13 Oklahoma Statutes;

14 ~~42.~~ 41. Using or investing any part of proceeds derived from
15 racketeering activities, as provided for in subsection C of Section
16 1403 of Title 22 of the Oklahoma Statutes;

17 ~~43.~~ 42. Conspiring with others to commit unlawful racketeering
18 activities, as provided for in subsection D of Section 1403 of Title
19 22 of the Oklahoma Statutes;

20 ~~44.~~ 43. Causing an accident resulting in great bodily injury
21 while driving under the influence of alcohol or other intoxicating
22 substance, as provided for in paragraph 1 of subsection B of Section
23 11-904 of Title 47 of the Oklahoma Statutes; and
24

1 ~~45.~~ 44. Trafficking in fentanyl or carfentanyl, or any fentanyl
2 analogs or derivatives, as provided for in subparagraph a of
3 paragraph 12 of subsection C of Section 2-415 of Title 63 of the
4 Oklahoma Statutes.

5 B. Any person convicted of a Class B1 criminal offense set
6 forth in this section shall be punished in accordance with the
7 corresponding penalties provided for in the Oklahoma Statutes.

8 SECTION 3. AMENDATORY Section 9, Chapter 366, O.S.L.
9 2024 (21 O.S. Supp. 2024, Section 20I), is amended to read as
10 follows:

11 Section 20I. A. Upon the effective date of this act, Class B4
12 shall include the following criminal offenses:

13 1. Concealing the birth or death of a child, as provided for in
14 Section 53 of Title 21 of the Oklahoma Statutes;

15 2. Assault, battery, or assault and battery with a sharp or
16 dangerous weapon, as provided for in Section 645 of Title 21 of the
17 Oklahoma Statutes;

18 3. Robbery in the second degree, as provided for in Section 799
19 of Title 21 of the Oklahoma Statutes;

20 4. Neglecting a vulnerable adult, as provided for in subsection
21 ~~B~~ A of Section 843.3 of Title 21 of the Oklahoma Statutes;

22 5. Malicious harassment of another person based on that
23 person's race, color, religion, ancestry, national origin, or
24

1 disability, as provided for in Section 850 of Title 21 of the
2 Oklahoma Statutes;

3 6. Abandonment of a child under ten (10) years of age, as
4 provided for in Section 851 of Title 21 of the Oklahoma Statutes;

5 7. Abandonment of a wife or child under fifteen (15) years of
6 age, as provided for in Section 853 of Title 21 of the Oklahoma
7 Statutes;

8 8. Second or subsequent conviction for causing, aiding,
9 abetting, encouraging, soliciting, or recruiting a minor to
10 participate, join, or associate with a criminal street gang, as
11 provided for in subsection E of Section 856 of Title 21 of the
12 Oklahoma Statutes;

13 9. Incest, as provided for in Section 885 of Title 21 of the
14 Oklahoma Statutes;

15 10. Crime against nature, as provided for in Section 886 of
16 Title 21 of the Oklahoma Statutes;

17 11. Taking or enticing away any child under sixteen (16) years
18 of age with the intent to detain or conceal such child, as provided
19 for in Section 891 of Title 21 of the Oklahoma Statutes;

20 12. Indecent exposure, as provided for in paragraph 1 of
21 subsection A of Section 1021 of Title 21 of the Oklahoma Statutes;

22 13. Procuring, counseling, or assisting another to commit an
23 act of indecent exposure, as provided for in paragraph 2 of
24 subsection A of Section 1021 of Title 21 of the Oklahoma Statutes;

1 14. Preparing, publishing, selling, distributing, downloading
2 on a computer, or exhibiting obscene material or child pornography,
3 as provided for in paragraph 3 of subsection A of Section 1021 of
4 Title 21 of the Oklahoma Statutes;

5 15. Preparing, selling, giving, loaning, distributing, or
6 exhibiting any type of obscene material or child pornography, as
7 provided for in paragraph 4 of subsection A of Section 1021 of Title
8 21 of the Oklahoma Statutes;

9 16. Operating, owning, or maintaining a house of prostitution,
10 soliciting, enticing, or procuring another for prostitution, or
11 transporting or assisting in the transport of another for
12 prostitution purposes, as provided for in Section 1028 of Title 21
13 of the Oklahoma Statutes;

14 17. Engaging in prostitution or soliciting, inducing, enticing,
15 or procuring another to commit an act of prostitution, as provided
16 for in subsection A of Section 1029 of Title 21 of the Oklahoma
17 Statutes;

18 18. Purchasing, selling, or distributing obscene material or
19 child pornography, as provided for in Section 1040.13 of Title 21 of
20 the Oklahoma Statutes;

21 19. Encouraging, offering, or soliciting sexual conduct with a
22 minor by use of technology, as provided for in Section 1040.13a of
23 Title 21 of the Oklahoma Statutes;

1 20. Promoting a pyramid promotional scheme, as provided for in
2 Section 1073 of Title 21 of the Oklahoma Statutes;

3 21. Second or subsequent offense of permitting prostitution in
4 any house, building, room, or premises under the control of such
5 person, as provided for in Section 1086 of Title 21 of the Oklahoma
6 Statutes;

7 22. Offering or offering to secure a child under eighteen (18)
8 years of age for the purpose of prostitution ~~or transporting or~~
9 ~~assisting in the transport of a child under eighteen (18) years of~~
10 ~~age to a house, place, building, vehicle, or other conveyance for~~
11 ~~the purpose of prostitution~~, as provided for in paragraph 1 of
12 subsection A of Section 1087 of Title 21 of the Oklahoma Statutes;

13 23. Knowingly permitting the prostitution of a child under
14 eighteen (18) years of age by an owner, proprietor, manager,
15 conductor, or other person in any house, place, building, room, or
16 other premises under the control of such person, as provided for in
17 paragraph 2 of subsection B of Section 1087 of Title 21 of the
18 Oklahoma Statutes;

19 24. Taking a woman against her will to compel her by force or
20 duress to marry another, as provided for in Section 1118 of Title 21
21 of the Oklahoma Statutes;

22 25. Abduction of a child under fifteen (15) years of age for
23 the purpose of marriage, concubinage, or any crime involving moral
24

1 turpitude, as provided for in Section 1119 of Title 21 of the
2 Oklahoma Statutes;

3 26. Sexual battery, as provided for in subsection B of Section
4 1123 of Title 21 of the Oklahoma Statutes;

5 27. Indecent acts with a human corpse, as provided for in
6 subsection C of Section 1123 of Title 21 of the Oklahoma Statutes;

7 28. Desecration of a human corpse, as provided for in Section
8 1161.1 of Title 21 of the Oklahoma Statutes;

9 29. Stalking within ten (10) years of a prior conviction for
10 stalking, as provided for in subsection D of Section 1173 of Title
11 21 of the Oklahoma Statutes;

12 30. Interfering with, molesting, or assaulting firefighters in
13 the performance of their duties, as provided for in Section 1217 of
14 Title 21 of the Oklahoma Statutes;

15 31. Concealment of hazardous waste, as provided for in Section
16 1230.7 of Title 21 of the Oklahoma Statutes;

17 32. Criminal syndicalism, as provided for in Section 1261 of
18 Title 21 of the Oklahoma Statutes;

19 33. Sabotage, as provided for in Section 1262 of Title 21 of
20 the Oklahoma Statutes;

21 34. Advocating or teaching criminal syndicalism or sabotage, as
22 provided for in Section 1263 of Title 21 of the Oklahoma Statutes;

23 35. Destroying, interfering, hindering, or tampering with real
24 or personal property with intent to hinder, delay, or interfere with

1 preparations for defense or for war, as provided for in Section
2 1265.2 of Title 21 of the Oklahoma Statutes;

3 36. Make or cause defects with any article or thing with
4 reasonable grounds to believe such article or thing will be used for
5 defense or for war, as provided for in Section 1265.3 of Title 21 of
6 the Oklahoma Statutes;

7 37. Conspiracy to commit crimes provided in the Sabotage
8 Prevention Act, as provided for in Section 1265.5 of Title 21 of the
9 Oklahoma Statutes;

10 38. Terrorism hoax, as provided for in Section 1268.4 of Title
11 21 of the Oklahoma Statutes;

12 39. Engaging in terrorist activity by manufacturing, sending,
13 delivering, or possessing any toxic, noxious, or lethal substances,
14 chemical, biological, or nuclear materials, as provided for in
15 Section 1268.6 of Title 21 of the Oklahoma Statutes;

16 40. Conducting or attempting to conduct financial transactions
17 involving property related to terrorism, as provided for in Section
18 1268.7 of Title 21 of the Oklahoma Statutes;

19 41. Using a money services business or an electronic funds
20 transfer in violation of the Oklahoma Antiterrorism Act, as provided
21 for in Section 1268.8 of Title 21 of the Oklahoma Statutes;

22 42. Possession of a firearm by a convicted felon, as provided
23 for in subsection A of Section 1283 of Title 21 of the Oklahoma
24 Statutes;

1 43. Possession of a firearm by a person serving a term of
2 probation for a felony or who is subject to supervision, probation,
3 parole, or inmate status, as provided for in subsection C of Section
4 1283 of Title 21 of the Oklahoma Statutes;

5 44. Possession of a firearm by a person previously adjudicated
6 as a delinquent child or youthful offender, as provided for in
7 subsection D of Section 1283 of Title 21 of the Oklahoma Statutes;

8 45. Possession of a firearm by a person who is an alien
9 illegally or unlawfully in the United States, as provided for in
10 subsection E of Section 1283 of Title 21 of the Oklahoma Statutes;

11 46. Allowing a convicted felon, adjudicated delinquent, or
12 youthful offender to possess a pistol authorized for use under the
13 Oklahoma Self-Defense Act by a person who has a handgun license, as
14 provided for in subsection F of Section 1283 of Title 21 of the
15 Oklahoma Statutes;

16 47. Use of a firearm or other offensive weapon while committing
17 a felony, as provided for in Section 1287 of Title 21 of the
18 Oklahoma Statutes;

19 48. Pointing a firearm, as provided for in Section 1289.16 of
20 Title 21 of the Oklahoma Statutes;

21 49. Manufacturing, importing, or selling restricted bullets, as
22 provided for in Section 1289.20 of Title 21 of the Oklahoma
23 Statutes;

1 50. Possessing, carrying, or using or attempting to use against
2 another person any restricted bullets, as provided for in Section
3 1289.21 of Title 21 of the Oklahoma Statutes;

4 51. Committing a felony while wearing body armor, as provided
5 for in Section 1289.26 of Title 21 of the Oklahoma Statutes;

6 52. Carrying a stolen handgun, as provided for in subsection B
7 of Section 1290.21 of Title 21 of the Oklahoma Statutes;

8 53. Incitement to riot, as provided for in Section 1320.2 of
9 Title 21 of the Oklahoma Statutes;

10 54. Malicious destruction or damage to real or personal
11 property or malicious injury to another during a state of emergency,
12 as provided for in Section 1321.7 of Title 21 of the Oklahoma
13 Statutes;

14 55. Participating in a riot during a state of emergency, as
15 provided for in subsection A of Section 1321.8 of Title 21 of the
16 Oklahoma Statutes;

17 56. Causing an innocent or irresponsible person to engage in a
18 riot, as provided for in subsection E of Section 1321.8 of Title 21
19 of the Oklahoma Statutes;

20 57. Possession of explosives by a convicted felon, as provided
21 for in Section 1368 of Title 21 of the Oklahoma Statutes;

22 58. Attempting, conspiring, or endeavoring to perform an act of
23 violence, as provided for in subsection A of Section 1378 of Title
24 21 of the Oklahoma Statutes;

1 59. Devising a plan, scheme, or program of action to cause
2 serious bodily harm or death of another person, as provided for in
3 subsection C of Section 1378 of Title 21 of the Oklahoma Statutes;

4 60. Endangering any human life including emergency service
5 personnel while committing an act of arson, as provided for in
6 Section 1405 of Title 21 of the Oklahoma Statutes;

7 61. Intimidating, threatening, assaulting, or battering any
8 driver, attendant, guard, or passenger of a bus with intent to seize
9 the bus, as provided for in subsection B of Section 1903 of Title 21
10 of the Oklahoma Statutes;

11 62. Discharging any firearm into or within any bus, terminal,
12 or other transportation facility, as provided for in subsection D of
13 Section 1903 of Title 21 of the Oklahoma Statutes;

14 63. Leaving the scene of a vehicle accident that resulted in
15 the death of a person, as provided for in Section 10-102.1 of Title
16 47 of the Oklahoma Statutes;

17 64. Second felony conviction of driving under the influence of
18 alcohol or other intoxicating substance, as provided for in
19 paragraph 3 of subsection C of Section 11-902 of Title 47 of the
20 Oklahoma Statutes;

21 65. Causing an accident resulting in the death of another
22 person while operating a vehicle without a valid driver license, as
23 provided for in subsection C of Section 11-905 of Title 47 of the
24 Oklahoma Statutes;

1 66. Throwing or dropping any substance at a moving vehicle, as
2 provided for in subsection A of Section 11-1111 of Title 47 of the
3 Oklahoma Statutes;

4 67. Throwing or dropping any object from a bridge or overpass
5 with intent to damage property or injure a person, as provided for
6 in subsection B of Section 11-1111 of Title 47 of the Oklahoma
7 Statutes;

8 68. Manufacturing, selling, transferring, or furnishing a
9 precursor substance to another with knowledge the recipient will use
10 such substance to unlawfully manufacture a controlled substance, as
11 provided for in subsection C of Section 2-328 of Title 63 of the
12 Oklahoma Statutes;

13 69. Second or subsequent conviction for manufacturing, selling,
14 transferring, furnishing, or receiving a precursor substance, as
15 provided for in subsection D of Section 2-328 of Title 63 of the
16 Oklahoma Statutes;

17 70. Purchasing, obtaining, possessing, manufacturing, selling,
18 or transferring a precursor substance without a permit or making a
19 false statement in an application or report, as provided for in
20 subsection E of Section 2-328 of Title 63 of the Oklahoma Statutes;

21 71. Selling, transferring, distributing, or dispensing any
22 product containing ephedrine, pseudoephedrine, or
23 phenylpropanolamine to another with knowledge the purchaser will use
24 such product as a precursor to manufacture methamphetamine or

1 another controlled illegal substance, as provided for in Section 2-
2 333 of Title 63 of the Oklahoma Statutes;

3 72. Cultivating, producing, or knowingly permitting the
4 cultivation or production of any species of plants from which
5 controlled dangerous substances may be derived, as provided for in
6 subsection B of Section 2-509 of Title 63 of the Oklahoma Statutes;

7 73. Manufacturing or attempting to manufacture any controlled
8 dangerous substance by cooking, burning, or extracting and
9 converting ~~marijuana~~ marihuana or ~~marijuana~~ marihuana oil into
10 hashish, hashish oil, or hashish powder, as provided for in
11 subsection H of Section 2-509 of Title 63 of the Oklahoma Statutes;

12 74. Purchasing or possessing any quantity of pseudoephedrine by
13 a person who is subject to the Oklahoma Methamphetamine Offender
14 Registry Act, as provided for in subsection B of Section 2-701 of
15 Title 63 of the Oklahoma Statutes; and

16 75. Using an explosive or blasting agent with the intent to
17 kill, injure, or intimidate a person or unlawfully damage real or
18 personal property, as provided for in subsection B of Section 124.8
19 of Title 63 of the Oklahoma Statutes.

20 B. Any person convicted of a Class B4 criminal offense set
21 forth in this section shall be punished in accordance with the
22 corresponding penalties provided for in the Oklahoma Statutes.

SECTION 4. AMENDATORY Section 10, Chapter 366, O.S.L.

2024 (21 O.S. Supp. 2024, Section 20J), is amended to read as follows:

Section 20J. A. Upon the effective date of this act, Class B5 shall include the following criminal offenses:

1. Second or subsequent conviction for assault and battery against a current or former intimate partner or a family or household member, as provided for in subsection C of Section 644 of Title 21 of the Oklahoma Statutes;

2. Second or subsequent conviction for domestic abuse committed in the presence of a child, as provided for in subsection G of Section 644 of Title 21 of the Oklahoma Statutes;

3. Assault and battery by strangulation or attempted strangulation against an intimate partner or a family or household member, as provided for in subsection J of Section 644 of Title 21 of the Oklahoma Statutes;

4. Aggravated assault and battery, as provided for in Section 646 of Title 21 of the Oklahoma Statutes;

5. Battery or assault and battery upon a police officer, sheriff, deputy sheriff, highway patrolman, corrections personnel, or other state peace officer, as provided for in subsection B of Section 649 of Title 21 of the Oklahoma Statutes;

1 6. Striking or mistreating a police dog or police horse during
2 the commission of a misdemeanor or felony, as provided for in
3 subsection D of Section 649.1 of Title 21 of the Oklahoma Statutes;

4 7. Disfiguring, disabling, or killing a police dog or police
5 horse during the commission of a misdemeanor or felony, as provided
6 for in subsection C of Section 649.2 of Title 21 of the Oklahoma
7 Statutes;

8 8. Battery or assault and battery resulting in bodily injury to
9 any employee of the Office of Juvenile Affairs or residential
10 facility, as provided for in subsection E of Section 650.2 of Title
11 21 of the Oklahoma Statutes;

12 9. Assault with intent to kill, as provided for in Section 653
13 of Title 21 of the Oklahoma Statutes;

14 10. Assault with intent to commit any felony, as provided for
15 in Section 681 of Title 21 of the Oklahoma Statutes;

16 11. Manslaughter in the second degree, as provided for in
17 Section 716 of Title 21 of the Oklahoma Statutes;

18 12. Owning a mischievous animal that kills a human being, as
19 provided for in Section 717 of Title 21 of the Oklahoma Statutes;

20 13. Causing, aiding, abetting, or encouraging a minor to commit
21 or participate in committing a felony offense, as provided for in
22 subsection C of Section 856 of Title 21 of the Oklahoma Statutes;

23 14. Causing, aiding, abetting, encouraging, soliciting, or
24 recruiting a minor to participate, join, or associate with any

1 criminal street gang, as provided for in subsection D of Section 856
2 of Title 21 of the Oklahoma Statutes;

3 15. Committing a gang-related offense as a condition of
4 membership in a criminal street gang, as provided for in Section
5 856.3 of Title 21 of the Oklahoma Statutes;

6 16. Stalking, as provided for in subsection B of Section 1173
7 of Title 21 of the Oklahoma Statutes;

8 17. Second or subsequent conviction of stalking or committing
9 the act of stalking within ten (10) years of the completion of
10 sentence for a prior conviction of stalking, as provided for in
11 subsection C of Section 1173 of Title 21 of the Oklahoma Statutes;

12 18. Intentionally or recklessly spreading an infectious
13 disease, as provided for in Section 1192.1 of Title 21 of the
14 Oklahoma Statutes;

15 19. Entering the premises of another while masked or disguised
16 with the intent to inflict bodily injury or injury to property, as
17 provided for in Section 1302 of Title 21 of the Oklahoma Statutes;

18 20. Assault with a dangerous weapon while masked or in
19 disguise, as provided for in Section 1303 of Title 21 of the
20 Oklahoma Statutes;

21 21. Unlawful assembly for the purpose of engaging in a riot, as
22 provided for in Section 1320.3 of Title 21 of the Oklahoma Statutes;

23 22. Acts of cruelty to animals, as provided for in Section 1685
24 of Title 21 of the Oklahoma Statutes;

1 23. Instigating or encouraging any cockfight, as provided for
2 in Section 1692.2 of Title 21 of the Oklahoma Statutes;

3 24. Keeping a pit or other place or knowingly providing
4 equipment or facilities for cockfighting, as provided for in Section
5 1692.3 of Title 21 of the Oklahoma Statutes;

6 25. Servicing or facilitating a cockfight, as provided for in
7 Section 1692.4 of Title 21 of the Oklahoma Statutes;

8 26. Owning, possessing, keeping, or training any bird for
9 cockfighting, as provided for in Section 1692.5 of Title 21 of the
10 Oklahoma Statutes;

11 27. Instigating or encouraging any fight between dogs, as
12 provided for in Section 1694 of Title 21 of the Oklahoma Statutes;

13 28. Keeping a house, pit, or other place, or providing any
14 equipment or facilities to be used for any fight between dogs, as
15 provided for in Section 1695 of Title 21 of the Oklahoma Statutes;

16 29. Acting or performing any service in the furtherance of or
17 facilitating any dogfight, as provided for in Section 1696 of Title
18 21 of the Oklahoma Statutes;

19 30. Owning, possessing, keeping, or training any dog with
20 intent to have such dog fight another dog, as provided for in
21 Section 1697 of Title 21 of the Oklahoma Statutes;

22 31. Failing to stop for an accident resulting in a nonfatal
23 injury to another person, as provided for in Section 10-102 of Title
24 47 of the Oklahoma Statutes;

1 ~~28.~~ 32. Personal injury accident while driving or operating a
2 motor vehicle under the influence of alcohol or other intoxicating
3 substance while having a previous conviction for driving or
4 operating a motor vehicle while under the influence of alcohol or
5 other intoxicating substance, as provided for in paragraph 2 of
6 subsection A of Section 11-904 of Title 47 of the Oklahoma Statutes;

7 ~~29.~~ 33. Failure to register as a sex offender, as provided for
8 in Section 583 of Title 57 of the Oklahoma Statutes;

9 ~~30.~~ 34. Furnishing false or misleading information in the
10 registration required by the Sex Offenders Registration Act, as
11 provided for in Section 586 of Title 57 of the Oklahoma Statutes;

12 ~~31.~~ 35. Failure to comply with the Sex Offenders Registration
13 Act, as provided for in subsection A of Section 587 of Title 57 of
14 the Oklahoma Statutes;

15 ~~32.~~ 36. Failure to comply with established guidelines of
16 global-positioning-system (GPS) monitoring pursuant to the
17 provisions of the Sex Offenders Registration Act, as provided for in
18 subsection B of Section 587 of Title 57 of the Oklahoma Statutes;

19 ~~33.~~ 37. Temporarily or permanently residing within a two-
20 thousand-foot radius of a public or private school site or other
21 listed places by a person required to register pursuant to the Sex
22 Offenders Registration Act, as provided for in subsection A of
23 Section 590 of Title 57 of the Oklahoma Statutes;

1 ~~34.~~ 38. Residing with a minor child after being convicted of an
2 offense that involved a minor child by a person required to register
3 pursuant to the Sex Offenders Registration Act, as provided for in
4 subsection B of Section 590 of Title 57 of the Oklahoma Statutes;

5 ~~35.~~ 39. Two or more sex offenders residing together in a
6 dwelling during the term of registration as a sex offender, as
7 provided for in subsection A of Section 590.1 of Title 57 of the
8 Oklahoma Statutes; and

9 ~~36.~~ 40. Establishing, leasing, operating, or owning any
10 structure where persons required to register pursuant to the Sex
11 Offenders Registration Act are allowed to reside, as provided for in
12 subsection E of Section 590.1 of Title 57 of the Oklahoma Statutes.

13 B. Any person convicted of a Class B5 criminal offense set
14 forth in this section shall be punished in accordance with the
15 corresponding penalties provided for in the Oklahoma Statutes.

16 SECTION 5. AMENDATORY Section 12, Chapter 366, O.S.L.
17 2024 (21 O.S. Supp. 2024, Section 20L), is amended to read as
18 follows:

19 Section 20L. A. Upon the effective date of this act, Class C1
20 shall include the following criminal offenses:

21 1. Assisting a prisoner, who is confined in prison for a
22 felony, to escape from prison, as provided for in paragraph 1 of
23 Section 437 of Title 21 of the Oklahoma Statutes;

1 2. Carrying in or sending into a prison anything useful to aid
2 a prisoner, who is confined in prison for a felony, in escaping from
3 prison, as provided for in paragraph 1 of Section 438 of Title 21 of
4 the Oklahoma Statutes;

5 3. Harboring, assisting, or concealing any person guilty of a
6 felony, outlaw, or fugitive from justice, as provided for in
7 subsection A of Section 440 of Title 21 of the Oklahoma Statutes;

8 4. Preventing or attempting to prevent any person from giving
9 testimony or producing records or documents, as provided for in
10 subsection A of Section 455 of Title 21 of the Oklahoma Statutes;

11 5. Threatening physical harm through force or fear or causing
12 physical harm to any person who provided testimony in any civil or
13 criminal trial or proceeding, as provided for in subsection B of
14 Section 455 of Title 21 of the Oklahoma Statutes;

15 6. ~~Causing~~ Endangering any other person while attempting to
16 elude a peace officer or causing an accident resulting in great
17 bodily injury while eluding or attempting to elude an a peace
18 officer, as provided for in subsection B or C of Section 540A of
19 Title 21 of the Oklahoma Statutes;

20 7. Fighting any duel, as provided for in Section 662 of Title
21 21 of the Oklahoma Statutes;

22 8. Financial exploitation of an elderly or disabled adult with
23 funds, assets, or property valued at One Hundred Thousand Dollars
24

1 (\$100,000.00) or more, as provided for in paragraph 1 of subsection
2 B of Section 843.4 of Title 21 of the Oklahoma Statutes;

3 9. Arson in the third degree by setting fire, burning, or using
4 explosive devices to burn any property, as provided for in
5 subsection A of Section 1403 of Title 21 of the Oklahoma Statutes;

6 10. Arson in the fourth degree by placing or distributing any
7 flammable, explosive, or combustible material or substance in any
8 building or property with the intent to set fire to or burn the
9 same, as provided for in subsection B of Section 1404 of Title 21 of
10 the Oklahoma Statutes;

11 11. Burglary in the second degree by breaking and entering into
12 the dwelling house of another in which no human is present, as
13 provided for in subsection A of Section 1435 of Title 21 of the
14 Oklahoma Statutes;

15 12. Stealing in the night time from the person of another, as
16 provided for in Section 1708 of Title 21 of the Oklahoma Statutes;

17 ~~12. Soliciting another to commit certain computer crimes, as~~
18 ~~provided for in paragraph 10 of subsection A of Section 1953 of~~
19 ~~Title 21 of the Oklahoma Statutes;~~

20 13. Receiving, acquiring, or concealing proceeds or engaging in
21 transactions involving proceeds of Ten Thousand Dollars (\$10,000.00)
22 or more that were derived from unlawful activities, as provided for
23 in paragraph 3 of subsection G of Section 2001 of Title 21 of the
24 Oklahoma Statutes;

1 14. Making a false affidavit, as provided for in Section 6-302
2 of Title 47 of the Oklahoma Statutes;

3 15. Using or soliciting the use of services of a minor to
4 distribute, dispense, transport, or cultivate a controlled dangerous
5 substance, as provided for in subsection E of Section 2-401 of Title
6 63 of the Oklahoma Statutes;

7 16. Transporting with intent to distribute or dispense,
8 distributing, or possessing with intent to distribute a controlled
9 dangerous substance within two thousand (2,000) feet of a public or
10 private school, college or university, park, or child care facility,
11 as provided for in subsection F of Section 2-401 of Title 63 of the
12 Oklahoma Statutes;

13 17. Acquiring or obtaining possession of a controlled dangerous
14 substance by a registrant through misrepresentation, fraud, forgery,
15 deception, or subterfuge, as provided for in paragraph 3 of
16 subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

17 18. Employing, hiring, or using a minor to transport, carry,
18 sell, give away, prepare for sale, or peddle any controlled
19 dangerous substance, as provided for in subsection A of Section 2-
20 419.1 of Title 63 of the Oklahoma Statutes;

21 19. Employing, hiring, or using a minor to transport, carry,
22 sell, give away, prepare for sale, or peddle any controlled
23 dangerous substance subsequent to a previous conviction of the same,
24

1 as provided for in subsection C of Section 2-419.1 of Title 63 of
2 the Oklahoma Statutes;

3 20. Evading federal reporting requirements or other federal
4 money laundering laws, as provided for in Section 2-503.1f of Title
5 63 of the Oklahoma Statutes;

6 21. Owning, operating, or conducting a chop shop, as provided
7 for in paragraph 1 of subsection A of Section 4253 of Title 63 of
8 the Oklahoma Statutes;

9 22. Transporting any vessel, motor, or vessel or motor parts to
10 or from a chop shop, as provided for in paragraph 2 of subsection A
11 of Section 4253 of Title 63 of the Oklahoma Statutes; and

12 23. Selling, transferring, purchasing, or receiving any vessel,
13 motor, or vessel or motor parts to or from a chop shop, as provided
14 for in paragraph 3 of subsection A of Section 4253 of Title 63 of
15 the Oklahoma Statutes; ~~and~~

16 ~~24. Burglary in the second degree by breaking and entering into~~
17 ~~the dwelling house of another in which no human is present, as~~
18 ~~provided for in subsection A of Section 1435 of Title 21 of the~~
19 ~~Oklahoma Statutes.~~

20 B. Any person convicted of a Class C1 criminal offense set
21 forth in this section shall be punished by imprisonment in the
22 custody of the Department of Corrections for a term of not more than
23 eight (8) years and shall serve at least twenty-five percent (25%)
24 of the sentence imposed before release from custody including

1 release to electronic monitoring pursuant to Section 510.9 of Title
2 57 of the Oklahoma Statutes.

3 C. 1. Every person who, having been previously convicted of
4 one or two Class C or Class D criminal offenses, commits a Class C1
5 criminal offense shall, upon conviction, be punished by imprisonment
6 in the custody of the Department of Corrections for a term of not
7 less than two (2) years nor more than twelve (12) years and shall
8 serve at least twenty-five percent (25%) of the sentence imposed
9 before release from custody including release to electronic
10 monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma
11 Statutes.

12 2. Every person who, having been previously convicted of three
13 Class C or Class D criminal offenses, or one or more Class Y, Class
14 A, or Class B criminal offenses, commits a Class C1 criminal offense
15 shall, upon conviction, be punished by imprisonment in the custody
16 of the Department of Corrections for a term of not less than two (2)
17 years nor more than thirty (30) years and shall serve at least fifty
18 percent (50%) of the sentence imposed before release from custody
19 including release to electronic monitoring pursuant to Section 510.9
20 of Title 57 of the Oklahoma Statutes.

21 D. 1. Unless specifically exempted pursuant to subsection E of
22 this section, Section 51.1 of Title 21 of the Oklahoma Statutes
23 shall not apply to Class C1 criminal offenses.
24

1 2. The criminal offenses listed in paragraphs 15 and 18 of
2 subsection A of this section shall be exempt from the penalty
3 provisions provided for in subsections B and C of this section.
4 Persons convicted of the criminal offenses provided for in
5 paragraphs 15 and 18 of subsection A of this section shall be
6 punished in accordance with the corresponding penalties provided for
7 in the Oklahoma Statutes including Section 51.1 of Title 21 of the
8 Oklahoma Statutes.

9 3. The criminal offense listed in paragraph 19 of subsection A
10 of this section shall be exempt from the penalty provision provided
11 for in subsection B of this section. Persons convicted of the
12 criminal offense provided for in paragraph 19 of subsection A of
13 this section shall be punished in accordance with the corresponding
14 penalties provided for in the Oklahoma Statutes including Section
15 51.1 of Title 21 of the Oklahoma Statutes. The provisions of
16 subsection C of this section still ~~applies~~ apply to the criminal
17 offense listed in paragraph 19 of subsection A of this section.

18 E. All Class C1 criminal offenses shall be punishable by the
19 corresponding fines as provided for in the Oklahoma Statutes.

20 SECTION 6. AMENDATORY Section 13, Chapter 366, O.S.L.
21 2024 (21 O.S. Supp. 2024, Section 20M), is amended to read as
22 follows:

23 Section 20M. A. Upon the effective date of this act, Class C2
24 shall include the following criminal offenses:

1 1. Theft of anhydrous equipment, as provided for in subsection
2 B of Section 11-10 of Title 2 of the Oklahoma Statutes;

3 2. Branding, misbranding, marking, or mismarking any domestic
4 animal with intent to defraud, as provided for in Section 268 of
5 Title 4 of the Oklahoma Statutes;

6 ~~2.~~ 3. Injuring, destroying, or attempting to injure or destroy
7 any pipeline transportation system, as provided for in subsection C
8 of Section 6.1 of Title 17 of the Oklahoma Statutes;

9 ~~3.~~ 4. Embezzlement by a county treasurer or other officer, as
10 provided for in Section 641 of Title 19 of the Oklahoma Statutes;

11 ~~4.~~ 5. Giving or offering any bribe to an executive officer, as
12 provided for in Section 265 of Title 21 of the Oklahoma Statutes;

13 ~~5.~~ 6. Receiving or agreeing to receive a bribe by an executive
14 officer or person elected or appointed to an executive office, as
15 provided for in Section 266 of Title 21 of the Oklahoma Statutes;

16 ~~6.~~ 7. Entry into a restricted area of a building or grounds
17 using or carrying a deadly or dangerous weapon or firearm or
18 engaging in acts of violence that result in great bodily injury, as
19 provided for in paragraph 1 of subsection B of Section 282 of Title
20 21 of the Oklahoma Statutes;

21 ~~7.~~ 8. Forcefully or fraudulently preventing the Legislature
22 from meeting or organizing, as provided for in Section 301 of Title
23 21 of the Oklahoma Statutes;

1 ~~8.~~ 9. Forcefully or fraudulently compelling or attempting to
2 compel the Legislature to adjourn or disperse, as provided for in
3 Section 303 of Title 21 of the Oklahoma Statutes;

4 ~~9.~~ 10. Compelling or attempting to compel either house of the
5 Legislature to pass, amend, or reject any bill or resolution, grant
6 or refuse any petition, or to perform or omit to perform any other
7 official act, as provided for in Section 305 of Title 21 of the
8 Oklahoma Statutes;

9 ~~10.~~ 11. Offering to give a bribe to any member of the
10 Legislature in order to influence the member in giving or
11 withholding a vote, as provided for in Section 308 of Title 21 of
12 the Oklahoma Statutes;

13 ~~11.~~ 12. Asking, receiving, or agreeing to receive any bribe by
14 a member of the Legislature, as provided for in Section 309 of Title
15 21 of the Oklahoma Statutes;

16 ~~12.~~ 13. Entering a fort, magazine, arsenal, armory, arsenal
17 yard, or encampment and seizing or taking away arms, ammunition,
18 military stores, or supplies belonging to the state, as provided for
19 in Section 350 of Title 21 of the Oklahoma Statutes;

20 ~~13.~~ 14. Carrying, causing to be carried, or publicly displaying
21 any red flag or other emblem or banner indicating disloyalty to the
22 Government of the United States, as provided for in Section 374 of
23 Title 21 of the Oklahoma Statutes;

1 ~~14.~~ 15. Bribery by a fiduciary, as provided for in subsection A
2 of Section 380 of Title 21 of the Oklahoma Statutes;
3 ~~15.~~ 16. Bribery of a fiduciary, as provided for in subsection B
4 of Section 380 of Title 21 of the Oklahoma Statutes;
5 ~~16.~~ 17. Commercial bribery of an insured depository institution
6 or credit union, as provided in Section 380.1 of Title 21 of the
7 Oklahoma Statutes;
8 ~~17.~~ 18. Accepting or requesting a bribe by public officers or
9 employees of this state, as provided for in Section 382 of Title 21
10 of the Oklahoma Statutes;
11 ~~18.~~ 19. Offering or giving a bribe to any judicial officer, as
12 provided for in Section 383 of Title 21 of the Oklahoma Statutes;
13 ~~19.~~ 20. Attempting to influence a juror, as provided for in
14 Section 388 of Title 21 of the Oklahoma Statutes;
15 ~~20.~~ 21. Conspiracy to commit a felony, as provided for in
16 subsection C of Section 421 of Title 21 of the Oklahoma Statutes;
17 ~~21.~~ 22. Conspiring to commit any act against the peace of the
18 state by two or more persons outside of the state, as provided for
19 in Section 422 of Title 21 of the Oklahoma Statutes;
20 ~~22.~~ 23. Conspiring to commit any act against the state by two
21 or more persons, as provided for in Section 424 of Title 21 of the
22 Oklahoma Statutes;
23
24

1 ~~23. Endangering any other person while attempting to elude a~~
2 ~~peace officer, as provided for in subsection B of Section 540A of~~
3 ~~Title 21 of the Oklahoma Statutes;~~

4 24. Attempting to avoid a roadblock by failing to stop, passing
5 by or through such roadblock without permission, as provided for in
6 Section 540B of Title 21 of the Oklahoma Statutes;

7 25. Fraudulently producing an infant in order to intercept the
8 inheritance or distribution of any personal estate or real estate,
9 as provided for in Section 578 of Title 21 of the Oklahoma Statutes;

10 26. Maiming by inflicting upon one's self any disabling injury,
11 as provided for in Section 752 of Title 21 of the Oklahoma Statutes;

12 27. Financial exploitation of an elderly or disabled adult with
13 funds, assets, or property valued at One Hundred Thousand Dollars
14 (\$100,000.00) or less, as provided for in paragraph 2 of subsection
15 B of Section 843.4 of Title 21 of the Oklahoma Statutes;

16 28. Conducting gambling games, as provided for in Section 941
17 of Title 21 of the Oklahoma Statutes;

18 29. Using a house, room, or place to conduct gambling games, as
19 provided for in Section 946 of Title 21 of the Oklahoma Statutes;

20 30. Engaging or participating in gambling games by a public
21 officer, as provided for in Section 948 of Title 21 of the Oklahoma
22 Statutes;

23 31. Commercial gambling, as provided for in Section 982 of
24 Title 21 of the Oklahoma Statutes;

1 32. Letting premises for the purpose of betting on races or
2 receiving, registering, recording, or forwarding any money or thing
3 of value to a racetrack for betting purposes, as provided for in
4 paragraphs 2 through 6 of subsection A of Section 991 of Title 21 of
5 the Oklahoma Statutes;

6 33. Using the terms "prize" or "gift" in a manner that is
7 untrue or misleading, as provided for in Section 996.3 of Title 21
8 of the Oklahoma Statutes;

9 34. Advocating criminal syndicalism, sabotage, or the
10 necessity, propriety, or expediency of doing any act of physical
11 violence or unlawful act as a means of accomplishing any industrial
12 or political ends, change, or revolution, as provided for in
13 subsection A of Section 1327 of Title 21 of the Oklahoma Statutes;

14 35. Arson in the fourth degree by attempting to set fire to or
15 burn any building or property, as provided for in subsection A of
16 Section 1404 of Title 21 of the Oklahoma Statutes;

17 36. Delivering to another any merchandise for which any bill of
18 lading, receipt, or voucher has been issued and the value of the
19 property is Fifteen Thousand Dollars (\$15,000.00) or more, as
20 provided for in paragraph 4 of Section 1416 of Title 21 of the
21 Oklahoma Statutes;

22 37. Burglary in the second degree by breaking and entering into
23 any commercial building or by breaking and entering into a coin-
24

1 operated or vending machine, as provided for in subsection A of
2 Section 1435 of Title 21 of the Oklahoma Statutes;

3 38. Embezzlement of property valued at Fifteen Thousand Dollars
4 (\$15,000.00) or more, as provided for in paragraph 4 of subsection B
5 of Section 1451 of Title 21 of the Oklahoma Statutes;

6 39. Embezzlement by a county or state officer, as provided for
7 in subsection C of Section 1451 of Title 21 of the Oklahoma
8 Statutes;

9 40. False personation of another, as provided for in Section
10 1531 of Title 21 of the Oklahoma Statutes;

11 41. Receiving money or property intended for another with a
12 value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided
13 for in paragraph 4 of Section 1532 of Title 21 of the Oklahoma
14 Statutes;

15 42. Use of a motor vehicle or motor-driven cycle for the
16 purpose of falsely impersonating a law enforcement officer which
17 causes another person to be injured, defrauded, harassed, vexed, or
18 annoyed, as provided for in paragraph 2 of subsection F of Section
19 1533 of Title 21 of the Oklahoma Statutes;

20 43. Obtaining, attempting to obtain, or presenting to a
21 financial institution personal, financial, or other information of
22 another person, as provided for in Section 1533.2 of Title 21 of the
23 Oklahoma Statutes;

1 44. Obtaining property by trick, deception, or by means of a
2 false or bogus check and the property value is Fifteen Thousand
3 Dollars (\$15,000.00) or more, as provided for in paragraph 3 of
4 subsection A of Section 1541.2 of Title 21 of the Oklahoma Statutes;

5 45. Making, drawing, uttering, or delivering two or more false
6 or bogus checks and the value is Fifteen Thousand Dollars
7 (\$15,000.00) or more, as provided for in paragraph 3 of subsection A
8 of Section 1541.3 of Title 21 of the Oklahoma Statutes;

9 46. Selling, exchanging, or delivering any forged or
10 counterfeited promissory note, check, bill, draft, or other evidence
11 of debt knowing the same is forged or counterfeited and the value of
12 the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
13 provided for in paragraph 4 of subsection A of Section 1577 of Title
14 21 of the Oklahoma Statutes;

15 47. Possession of any forged, altered, or counterfeited
16 negotiable note, bill, draft, or other evidence of debt and the
17 value of the instrument is Fifteen Thousand Dollars (\$15,000.00) or
18 more, as provided for in paragraph 4 of subsection A of Section 1578
19 of Title 21 of the Oklahoma Statutes;

20 48. Possession of any forged or counterfeited instrument with
21 intent to injure or defraud and the value of the instrument is
22 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
23 paragraph 4 of subsection A of Section 1579 of Title 21 of the
24 Oklahoma Statutes;

1 49. Uttering or publishing as true any forged, altered, or
2 counterfeited instrument or counterfeit coins and the value of the
3 instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
4 provided for in paragraph 4 of subsection A of Section 1592 of Title
5 21 of the Oklahoma Statutes;

6 50. Exhibiting false, forged, or altered books, papers,
7 vouchers, security, or other instruments of evidence to any public
8 officer or board with intent to deceive, as provided for in Section
9 1632 of Title 21 of the Oklahoma Statutes;

10 51. Destroying, altering, mutilating, or falsifying any books,
11 papers, writing, or securities belonging to a corporation or
12 association with intent to defraud, as provided for in Section 1635
13 of Title 21 of the Oklahoma Statutes;

14 ~~52. Instigating or encouraging any fight between dogs, as~~
15 ~~provided for in Section 1694 of Title 21 of the Oklahoma Statutes;~~

16 ~~53. Keeping a house, pit, or other place, or providing any~~
17 ~~equipment or facilities to be used for any fight between dogs, as~~
18 ~~provided for in Section 1695 of Title 21 of the Oklahoma Statutes;~~

19 ~~54. Acting or performing any service in the furtherance of or~~
20 ~~facilitating any dogfight, as provided for in Section 1696 of Title~~
21 ~~21 of the Oklahoma Statutes;~~

22 ~~55. Owning, possessing, keeping, or training any dog with~~
23 ~~intent to have such dog fight another dog, as provided for in~~
24 ~~Section 1697 of Title 21 of the Oklahoma Statutes;~~

1 ~~56.~~ Larceny of lost property and the value of the property is
2 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
3 paragraph 4 of Section 1702 of Title 21 of the Oklahoma Statutes;

4 ~~57.~~ 53. Grand larceny and the value of the property is Fifteen
5 Thousand Dollars (\$15,000.00) or more, as provided for in paragraph
6 4 of subsection A of Section 1705 of Title 21 of the Oklahoma
7 Statutes;

8 ~~58.~~ 54. Grand larceny in any dwelling house or vessel, as
9 provided for in Section 1707 of Title 21 of the Oklahoma Statutes;

10 ~~59.~~ 55. Larceny of any evidence of debt or other written
11 instrument, as provided for in Section 1709 of Title 21 of the
12 Oklahoma Statutes;

13 ~~60.~~ 56. Buying or receiving any property that has been stolen,
14 embezzled, or obtained by false pretense or robbery and has a value
15 of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
16 paragraph 3 of subsection A of Section 1713 of Title 21 of the
17 Oklahoma Statutes;

18 ~~61.~~ 57. Buying or receiving any construction equipment or farm
19 equipment that has been stolen, embezzled, or obtained by false
20 pretense or robbery, as provided for in Section 1713.1 of Title 21
21 of the Oklahoma Statutes;

22 ~~62.~~ 58. Bringing into this state the stolen property of another
23 obtained from another state or country, as provided for in Section
24 1715 of Title 21 of the Oklahoma Statutes;

1 ~~63.~~ 59. Larceny of livestock or implement of husbandry, as
2 provided for in subsection A of Section 1716 of Title 21 of the
3 Oklahoma Statutes;

4 ~~64.~~ 60. Larceny of a dog, as provided for in Section 1718 of
5 Title 21 of the Oklahoma Statutes;

6 ~~65.~~ 61. Grand larceny of exotic livestock, as provided for in
7 Section 1719.2 of Title 21 of the Oklahoma Statutes;

8 ~~66.~~ 62. Larceny of an aircraft, automobile, construction
9 equipment, or farm equipment, valued at Fifty Thousand Dollars
10 (\$50,000.00) or more, as provided for in Section 1720 of Title 21 of
11 the Oklahoma Statutes;

12 ~~67.~~ 63. Tapping or drilling into a pipeline, as provided for in
13 Section 1721 of Title 21 of the Oklahoma Statutes;

14 ~~68.~~ 64. Taking any crude oil or gasoline from any pipe,
15 pipeline, tank, tank car, or other receptacle or container and the
16 value of such product is One Thousand Dollars (\$1,000.00) or more,
17 as provided for in paragraph 2 of Section 1722 of Title 21 of the
18 Oklahoma Statutes;

19 ~~69.~~ 65. Larceny of merchandise from a retailer or wholesaler
20 and the value of the goods is Fifteen Thousand Dollars (\$15,000.00)
21 or more, as provided for in paragraph 5 of subsection A of Section
22 1731 of Title 21 of the Oklahoma Statutes;

1 ~~70.~~ 66. Larceny of trade secrets that is valued at Fifteen
2 Thousand Dollars (\$15,000.00) or more, as provided for in Section
3 1732 of Title 21 of the Oklahoma Statutes;

4 ~~71.~~ 67. Procuring, soliciting, selling, or receiving by
5 fraudulent, deceptive, or false means two to ten telephone records
6 without authorization, as provided for in paragraph 2 of subsection
7 B of Section 1742.2 of Title 21 of the Oklahoma Statutes;

8 ~~72.~~ 68. Masking, altering, or removing any locomotive or
9 railway car lights or signals, as provided for in Section 1778 of
10 Title 21 of the Oklahoma Statutes;

11 ~~73.~~ 69. Mutilating, tearing, defacing, obliterating, or
12 destroying any written instrument, value of Fifteen Thousand Dollars
13 (\$15,000.00) or more, as provided for in Section 1779 of Title 21 of
14 the Oklahoma Statutes;

15 ~~74.~~ 70. Violations of the Oklahoma Computer Crimes Act, as
16 provided for in paragraphs 1, 2, 3, 6, 7, 9, or 10 of subsection A
17 of Section 1953 of Title 21 of the Oklahoma Statutes;

18 ~~75.~~ 71. Contracting the sale of rights arising from a criminal
19 act without providing for the forfeiture of the proceeds, as
20 provided for in subsection A of Section 17 of Title 22 of the
21 Oklahoma Statutes;

22 ~~76.~~ 72. Violating any of the provisions of the Oklahoma Clean
23 Air Act knowing that the violation places others in danger of death
24

1 or serious bodily injury, as provided for in subsection B of Section
2 2-5-116 of Title 27A of the Oklahoma Statutes;

3 ~~77.~~ 73. Violating any of the provisions of the Oklahoma
4 Pollutant Discharge Elimination System Act knowing that the
5 violation places others in imminent danger of death or serious
6 bodily injury, as provided for in subparagraph a of paragraph 3 of
7 subsection G of Section 2-6-206 of Title 27A of the Oklahoma
8 Statutes;

9 ~~78.~~ 74. Soliciting or accepting any bribe or money by a game
10 warden in connection with the performance of his or her duties as a
11 game warden, as provided for in subsection E of Section 3-201 of
12 Title 29 of the Oklahoma Statutes;

13 ~~79.~~ 75. Taking or enticing away an incapacitated or partially
14 incapacitated person or person for whom a guardian has been
15 appointed without consent of the guardian, as provided for in
16 Section 4-904 of Title 30 of the Oklahoma Statutes;

17 ~~80.~~ 76. Violating any of the provisions of the Viatical
18 Settlements Act of 2008 if the value of the viatical settlement
19 contract is more than Two Thousand Five Hundred Dollars (\$2,500.00)
20 but not more than Thirty-five Thousand Dollars (\$35,000.00), as
21 provided for in paragraph 2 of subsection F of Section 4055.14 of
22 Title 36 of the Oklahoma Statutes;

1 ~~81.~~ 77. Embezzlement of certain funds held in trust, value of
2 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
3 paragraph (2) of Section 153 of Title 42 of the Oklahoma Statutes;

4 ~~82.~~ 78. Providing any false statement of a material fact in an
5 application for a certificate of title, as provided for in Section
6 4-108 of Title 47 of the Oklahoma Statutes;

7 ~~83.~~ 79. Altering or forging any certificate of title issued by
8 the Oklahoma Tax Commission, as provided for in Section 4-109 of
9 Title 47 of the Oklahoma Statutes;

10 ~~84.~~ 80. Perjury by making any false affidavit, as provided for
11 in Section 6-302 of Title 47 of the Oklahoma Statutes;

12 ~~85.~~ 81. Creating, manufacturing, issuing, or selling security
13 verification forms, as provided for in subsection B of Section 7-612
14 of Title 47 of the Oklahoma Statutes;

15 ~~86.~~ 82. Committing a subsequent violation of driving under the
16 influence of alcohol or other intoxicating substance within ten (10)
17 years of being convicted of driving under the influence of alcohol
18 or other intoxicating substance, causing a personal injury accident
19 while driving under the influence of alcohol or other intoxicating
20 substance, or driving under the influence of alcohol or other
21 intoxicating substance while transporting a child, as provided for
22 in paragraph 2 of subsection C of Section 11-902 of Title 47 of the
23 Oklahoma Statutes;

1 ~~87.~~ 83. Operating a vehicle without a valid driver license for
2 the class of vehicle being operated and causing an accident
3 resulting in great bodily injury to another person, as provided for
4 in subsection B of Section 11-905 of Title 47 of the Oklahoma
5 Statutes;

6 ~~88.~~ 84. Operating a crusher without a proper license and
7 receiving, obtaining, or possessing any vehicle or property known to
8 be stolen, as provided for in paragraph 2 of subsection B of Section
9 592.9 of Title 47 of the Oklahoma Statutes;

10 ~~89.~~ 85. Selling a vehicle or other property to a crusher using
11 false or altered identification or making a false declaration of
12 ownership or lien status, as provided for in paragraph 3 of
13 subsection B of Section 592.9 of Title 47 of the Oklahoma Statutes;

14 ~~90.~~ 86. Owning, operating, or conducting a chop shop,
15 transporting any motor vehicle or parts to or from a chop shop, or
16 selling, transferring, purchasing, or receiving any motor vehicle or
17 parts to or from a chop shop, as provided for in subsection A of
18 Section 1503 of Title 47 of the Oklahoma Statutes;

19 ~~91.~~ 87. Altering, counterfeiting, defacing, destroying,
20 disguising, falsifying, forging, obliterating, or knowingly removing
21 a vehicle identification number, as provided for in subsection B of
22 Section 1503 of Title 47 of the Oklahoma Statutes;

1 ~~92.~~ 88. Perjury by a public officer or employee who states as
2 true any material matter knowing it to be false, as provided for in
3 Section 36.5 of Title 51 of the Oklahoma Statutes;

4 ~~93.~~ 89. Advocating by teaching, justifying, or becoming a
5 member of or affiliated with the Communist Party or with any other
6 party or organization that advocates for the revolution, sedition,
7 treason, or overthrow of the government of the United States or the
8 State of Oklahoma by a public officer or employee, as provided for
9 in Section 36.6 of Title 51 of the Oklahoma Statutes;

10 ~~94.~~ 90. Perjury by verifying under oath any report, map, or
11 drawing required to be filed with the Corporation Commission knowing
12 that such material is false, as provided for in Section 109 of Title
13 52 of the Oklahoma Statutes;

14 ~~95.~~ 91. Asking, receiving, or agreeing to receive any gift or
15 gratuity by any member of the Corporation Commission, as provided
16 for in Section 118 of Title 52 of the Oklahoma Statutes;

17 ~~96.~~ 92. Burglary in the first degree by a bail enforcer by
18 breaking into and entering the dwelling house of any defendant or
19 third party for purposes of recovery or attempted recovery of a
20 defendant, as provided for in subsection A of Section 1350.6 of
21 Title 59 of the Oklahoma Statutes;

22 ~~97.~~ 93. Distributing, dispensing, transporting, or possessing a
23 controlled dangerous substance or soliciting a person less than
24 eighteen (18) years of age to cultivate, distribute, or dispense a

1 controlled dangerous substance, as provided for in paragraph 1 of
2 subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

3 ~~98.~~ 94. Creating, distributing, transporting, or possessing a
4 counterfeit controlled dangerous substance, as provided for in
5 paragraph 2 of subsection A of Section 2-401 of Title 63 of the
6 Oklahoma Statutes;

7 ~~99.~~ 95. Manufacturing or distributing a controlled substance or
8 synthetic controlled substance, as provided for in paragraph 1 of
9 subsection C of Section 2-401 of Title 63 of the Oklahoma Statutes;

10 ~~100.~~ 96. Larceny, burglary, or theft of a controlled dangerous
11 substance, as provided for in subsection A of Section 2-403 of Title
12 63 of the Oklahoma Statutes;

13 ~~101.~~ 97. Obtaining or attempting to obtain any controlled
14 dangerous substance by fraud, deceit, misrepresentation, or
15 subterfuge, as provided for in paragraph 1 of subsection A of
16 Section 2-407 of Title 63 of the Oklahoma Statutes;

17 ~~102.~~ 98. Obtaining or attempting to obtain any controlled
18 dangerous substance by forgery of, alteration of, or changing any
19 information on a prescription or any written order, as provided for
20 in paragraph 2 of subsection A of Section 2-407 of Title 63 of the
21 Oklahoma Statutes;

22 ~~103.~~ 99. Obtaining or attempting to obtain any controlled
23 dangerous substance by the concealment of a material fact, as
24

1 provided for in paragraph 3 of subsection A of Section 2-407 of
2 Title 63 of the Oklahoma Statutes;

3 ~~104.~~ 100. Obtaining or attempting to obtain any controlled
4 dangerous substance by the use of a false name or false address, as
5 provided for in paragraph 4 of subsection A of Section 2-407 of
6 Title 63 of the Oklahoma Statutes;

7 ~~105.~~ 101. Obtaining or attempting to obtain any controlled
8 dangerous substance by failing to disclose the receipt or
9 prescription of a controlled dangerous substance of the same or
10 similar therapeutic use from another practitioner, as provided for
11 in paragraph 5 of subsection A of Section 2-407 of Title 63 of the
12 Oklahoma Statutes;

13 ~~106.~~ 102. Manufacturing, creating, delivering, or possessing an
14 original prescription form or counterfeit prescription form, as
15 provided for in subsection B of Section 2-407 of Title 63 of the
16 Oklahoma Statutes;

17 ~~107.~~ 103. Receiving or acquiring proceeds known to be derived
18 from any violation of the Uniform Controlled Dangerous Substances
19 Act, as provided for in subsection A of Section 2-503.1 of Title 63
20 of the Oklahoma Statutes;

21 ~~108.~~ 104. Knowingly or intentionally giving, selling,
22 transferring, trading, investing, concealing, transporting, or
23 maintaining an interest in anything of value which is intended to be
24 used for committing a violation of the Uniform Controlled Dangerous

1 Substances Act, as provided for in subsection B of Section 2-503.1
2 of Title 63 of the Oklahoma Statutes;

3 ~~109.~~ 105. Directing, planning, organizing, initiating,
4 financing, managing, supervising, or facilitating the transportation
5 or transfer of proceeds known to be derived from a violation of the
6 Uniform Controlled Dangerous Substances Act, as provided for in
7 subsection C of Section 2-503.1 of Title 63 of the Oklahoma
8 Statutes;

9 ~~110.~~ 106. Conducting a financial transaction involving proceeds
10 derived from a violation of the Uniform Controlled Dangerous
11 Substances Act for the purpose of concealing or disguising the
12 nature, location, source, ownership, or control of the proceeds
13 known to be derived from a violation of the Uniform Controlled
14 Dangerous Substances Act, as provided for in subsection D of Section
15 2-503.1 of Title 63 of the Oklahoma Statutes;

16 ~~111.~~ 107. Encouraging, facilitating, or allowing access to any
17 money transmitter equipment for unlawful purposes, as provided for
18 in subsection B of Section 2-503.1d of Title 63 of the Oklahoma
19 Statutes;

20 ~~112.~~ 108. Using a money services business or electronic funds
21 transfer network to facilitate any violation of the Uniform
22 Controlled Dangerous Substances Act, as provided for in Section 2-
23 503.1e of Title 63 of the Oklahoma Statutes;

1 ~~113.~~ 109. Structuring, assisting, or attempting to structure

2 any unlawful transaction with one or more financial or nonfinancial
3 trades or businesses, as provided for in Section 2-503.1g of Title
4 63 of the Oklahoma Statutes;

5 ~~114.~~ 110. Altering, counterfeiting, defacing, destroying,

6 disguising, falsifying, forging, obliterating, or removing a hull
7 identification number of a vessel or motor, as provided for in
8 subsection B of Section 4253 of Title 63 of the Oklahoma Statutes;

9 ~~115.~~ 111. Commit or attempt to commit certain violations of the

10 Vessel and Motor Chop Shop, Stolen and Altered Property Act, as
11 provided for in subsection D of Section 4253 of Title 63 of the
12 Oklahoma Statutes;

13 ~~116.~~ 112. Giving a false or bogus check in payment or

14 remittance of taxes, fees, penalties, or interest levied pursuant to
15 any state tax laws and the value of the false or bogus check is Five
16 Hundred Dollars (\$500.00) or more, as provided for in Section 218.1
17 of Title 68 of the Oklahoma Statutes;

18 ~~117.~~ 113. Perjury by providing false answers to any questions

19 from the Oklahoma Tax Commission or making or presenting any false
20 affidavit to be filed with the Oklahoma Tax Commission, as provided
21 for in Section 244 of Title 68 of the Oklahoma Statutes;

22 ~~118.~~ 114. Perjury by verifying by oath, affirmation, or

23 declaration, any false report or false return that is to be filed
24

1 with the Oklahoma Tax Commission, as provided for in Section 246 of
2 Title 68 of the Oklahoma Statutes;

3 ~~119.~~ 115. Making or manufacturing any tax stamp or falsely or
4 fraudulently forging, counterfeiting, reproducing, or possessing any
5 tax stamp, as provided for in subsection (a) of Section 317 of Title
6 68 of the Oklahoma Statutes;

7 ~~120.~~ 116. Offering or selling unregistered securities, as
8 provided for in Section 1-301 of Title 71 of the Oklahoma Statutes;

9 ~~121.~~ 117. Issuing investment certificates when insolvent by an
10 investment certificate issuer, as provided for in paragraph 1 of
11 subsection K of Section 1-308 of Title 71 of the Oklahoma Statutes;

12 ~~122.~~ 118. Transacting business as a broker-dealer without being
13 registered as a broker-dealer, as provided for in subsection A of
14 Section 1-401 of Title 71 of the Oklahoma Statutes;

15 ~~123.~~ 119. Employing or associating with an individual for
16 security transaction purposes when the registration of the
17 individual is suspended or revoked or the individual is barred from
18 employment or association with a broker-dealer, as provided for in
19 subsection C of Section 1-401 of Title 71 of the Oklahoma Statutes;

20 ~~124.~~ 120. Transacting business as an agent without being
21 registered as an agent, as provided for in subsection A of Section
22 1-402 of Title 71 of the Oklahoma Statutes;

23 ~~125.~~ 121. Employing or associating with an agent who transacts
24 business on behalf of broker-dealers when the agent is not

1 registered, as provided for in subsection D of Section 1-402 of
2 Title 71 of the Oklahoma Statutes;

3 ~~126.~~ 122. Conducting business on behalf of a broker-dealer when
4 the registration of the agent is suspended or revoked or the
5 individual is barred from employment or association with a broker-
6 dealer, as provided for in subsection F of Section 1-402 of Title 71
7 of the Oklahoma Statutes;

8 ~~127.~~ 123. Transacting business as an investment adviser without
9 being registered as an investment adviser, as provided for in
10 subsection A of Section 1-403 of Title 71 of the Oklahoma Statutes;

11 ~~128.~~ 124. Employing or associating with an individual to engage
12 in providing investment advice when the registration of the
13 individual is suspended or revoked or the individual is barred from
14 employment or association with an investment adviser, as provided
15 for in subsection C of Section 1-403 of Title 71 of the Oklahoma
16 Statutes;

17 ~~129.~~ 125. Employing or associating with an individual required
18 to be registered as an investment adviser representative who is not
19 registered as an investment adviser representative, as provided for
20 in subsection D of Section 1-403 of Title 71 of the Oklahoma
21 Statutes;

22 ~~130.~~ 126. Transacting business as an investment adviser
23 representative without being registered as an investment adviser
24

1 representative, as provided for in subsection A of Section 1-404 of
2 Title 71 of the Oklahoma Statutes;

3 ~~131.~~ 127. Conducting business on behalf of an investment
4 adviser or federal-covered investment adviser when the registration
5 of the investment adviser representative is suspended or revoked or
6 the individual is barred from employment or association with an
7 investment adviser or federal-covered investment adviser, as
8 provided for in subsection E of Section 1-404 of Title 71 of the
9 Oklahoma Statutes;

10 ~~132.~~ 128. Employing a device, scheme, or artifice to defraud
11 another when offering, selling, or purchasing a security, as
12 provided for in paragraph 1 of Section 1-501 of Title 71 of the
13 Oklahoma Statutes;

14 ~~133.~~ 129. Making an untrue statement of a material fact or
15 omitting a material fact when offering, selling, or purchasing a
16 security, as provided for in paragraph 2 of Section 1-501 of Title
17 71 of the Oklahoma Statutes;

18 ~~134.~~ 130. Engaging in an act, practice, or course of business
19 that operates as a fraud or deceit upon another person when
20 offering, selling, or purchasing a security, as provided for in
21 paragraph 3 of Section 1-501 of Title 71 of the Oklahoma Statutes;

22 ~~135.~~ 131. Employing a device, scheme, or artifice to defraud
23 another when advising others for compensation as to the value of
24

1 securities, as provided for in paragraph 1 of subsection A of
2 Section 1-502 of Title 71 of the Oklahoma Statutes;

3 ~~136.~~ 132. Making an untrue statement of a material fact or
4 omitting a material fact when advising others for compensation as to
5 the value of securities, as provided for in paragraph 2 of
6 subsection A of Section 1-502 of Title 71 of the Oklahoma Statutes;

7 ~~137.~~ 133. Engaging in an act, practice, or course of business
8 that operates as a fraud or deceit upon another person when advising
9 others for compensation as to the value of securities, as provided
10 for in paragraph 3 of subsection A of Section 1-502 of Title 71 of
11 the Oklahoma Statutes;

12 ~~138.~~ 134. Making false or misleading statements in a record, as
13 provided for in Section 1-505 of Title 71 of the Oklahoma Statutes;

14 ~~139.~~ 135. Making or causing to be made to a purchaser,
15 customer, client, or prospective customer or client, an inconsistent
16 representation, as provided for in Section 1-506 of Title 71 of the
17 Oklahoma Statutes;

18 ~~140.~~ 136. Willfully violating certain provisions of the
19 Oklahoma Uniform Securities Act of 2004, as provided for in
20 subsection A of Section 1-508 of Title 71 of the Oklahoma Statutes;

21 ~~141.~~ 137. Offering or selling any business opportunity without
22 being registered under the Oklahoma Business Opportunity Sales Act,
23 as provided for in Section 806 of Title 71 of the Oklahoma Statutes;

1 ~~142.~~ 138. Offering or selling any business opportunity without
2 a written disclosure being filed, as provided for in subsection A of
3 Section 808 of Title 71 of the Oklahoma Statutes;

4 ~~143.~~ 139. Offering or selling any business opportunity without
5 a business opportunity contract or agreement, as provided for in
6 subsection A of Section 809 of Title 71 of the Oklahoma Statutes;

7 ~~144.~~ 140. Making or using any specific representations from the
8 Oklahoma Business Opportunity Sales Act without having a minimum net
9 worth of Fifty Thousand Dollars (\$50,000.00), as provided for in
10 Section 811 of Title 71 of the Oklahoma Statutes;

11 ~~145.~~ 141. Using information filed with or obtained by the
12 Administrator that is not public for the personal benefit of the
13 Administrator or any officers or employees of the Administrator, as
14 provided for in subsection B of Section 812 of Title 71 of the
15 Oklahoma Statutes;

16 ~~146.~~ 142. Employing any device, scheme, or artifice to defraud
17 in connection with offering or selling any business opportunity, as
18 provided for in paragraph 1 of Section 819 of Title 71 of the
19 Oklahoma Statutes;

20 ~~147.~~ 143. Making any untrue statement of a material fact or
21 omitting a material fact in connection with offering or selling any
22 business opportunity, as provided for in paragraph 2 of Section 819
23 of Title 71 of the Oklahoma Statutes;

24

1 ~~148.~~ 144. Engaging in any act, practice, or course of business
2 which operates as a fraud or deceit in connection with offering or
3 selling any business opportunity, as provided for in paragraph 3 of
4 Section 819 of Title 71 of the Oklahoma Statutes;

5 ~~149.~~ 145. Making or causing to be made any false or misleading
6 statements or omitting to state a material fact necessary in any
7 document filed with the Administrator or in any proceeding pursuant
8 to the Oklahoma Business Opportunity Sales Act, as provided for in
9 Section 820 of Title 71 of the Oklahoma Statutes;

10 ~~150.~~ 146. Filing any application for registration that is
11 false, incomplete, or misleading, as provided for in Section 821 of
12 Title 71 of the Oklahoma Statutes;

13 ~~151.~~ 147. Publishing, circulating, or using any advertising
14 that contains untrue statements of material facts or omits to state
15 material facts necessary, as provided for in Section 822 of Title 71
16 of the Oklahoma Statutes;

17 ~~152.~~ 148. Taking or receiving any rebate, percentage of
18 contract, money, or any other thing of value by an officer of the
19 Office of Management and Enterprise Services from any person, firm,
20 or corporation, as provided for in Section 71 of Title 74 of the
21 Oklahoma Statutes;

22 ~~153.~~ 149. Monopolizing, attempting to monopolize, or conspiring
23 to monopolize any part of trade or commerce, as provided for in
24 subsection B of Section 203 of Title 79 of the Oklahoma Statutes;

1 ~~154.~~ 150. Discrimination in price between different purchasers
2 of commodities by any person engaged in commerce, as provided for in
3 Section 204 of Title 79 of the Oklahoma Statutes;

4 ~~155.~~ 151. Violation of the Oklahoma Antitrust Reform Act, as
5 provided for in Section 206 of Title 79 of the Oklahoma Statutes;

6 ~~156.~~ 152. Having any interest, directly or indirectly, in any
7 contract for the purchase of property or construction of work by or
8 for the Grand River Dam Authority by a director, officer, agent, or
9 employee, as provided for in Section 867 of Title 82 of the Oklahoma
10 Statutes; and

11 ~~157.~~ 153. Using explosive agent to kill, injure, or intimidate
12 or to damage property, as provided for in subsection B of Section
13 124.8 of Title 63 of the Oklahoma Statutes; ~~and~~

14 ~~158. Theft of anhydrous equipment, as provided for in~~
15 ~~subsection B of Section 11-10 of Title 2 of the Oklahoma Statutes.~~

16 B. Any person convicted of a Class C2 criminal offense set
17 forth in this section shall be punished by imprisonment in the
18 custody of the Department of Corrections for a term of not more than
19 seven (7) years and shall serve at least twenty percent (20%) of the
20 sentence imposed before release from custody including release to
21 electronic monitoring pursuant to Section 510.9 of Title 57 of the
22 Oklahoma Statutes.

23 C. 1. Every person who, having been previously convicted of
24 one or two Class C or Class D criminal offenses, commits a Class C2

1 criminal offense shall, upon conviction, be punished by imprisonment
2 in the custody of the Department of Corrections for a term of not
3 less than two (2) years nor more than ten (10) years and shall serve
4 at least twenty percent (20%) of the sentence imposed before release
5 from custody including release to electronic monitoring pursuant to
6 Section 510.9 of Title 57 of the Oklahoma Statutes.

7 2. Every person who, having been previously convicted of three
8 Class C or Class D criminal offenses, or one or more Class Y, Class
9 A, or Class B criminal offenses, commits a Class C2 criminal offense
10 shall, upon conviction, be punished by imprisonment in the custody
11 of the Department of Corrections for a term of not less than two (2)
12 years nor more than twelve (12) years and shall serve at least forty
13 percent (40%) of the sentence imposed before release from custody
14 including release to electronic monitoring pursuant to Section 510.9
15 of Title 57 of the Oklahoma Statutes.

16 D. Unless specifically exempted pursuant to subsection E of
17 this section, Section 51.1 of Title 21 of the Oklahoma Statutes
18 shall not apply to Class C2 criminal offenses.

19 E. 1. The criminal offenses listed in paragraphs 1, 2, 52, 53,
20 54, 55, 63, 65, 67, 68, 76, and 77 of subsection A of this section
21 shall be exempt from the penalty provisions provided for in
22 subsections B and C of this section. Persons convicted of the
23 criminal offenses provided for in paragraphs 1, 2, 52, 53, 54, 55,
24 63, 65, 67, 68, 76, and 77 of subsection A of this section shall be

1 punished in accordance with the corresponding penalties provided for
2 in the Oklahoma Statutes including Section 51.1 of Title 21 of the
3 Oklahoma Statutes.

4 2. The criminal offense listed in paragraph 64 of subsection A
5 of this section shall be exempt from the penalty provision provided
6 for in subsection B of this section. Persons convicted of the
7 criminal offense provided for in paragraph 64 of subsection A of
8 this section shall be punished in accordance with the corresponding
9 penalties as provided for in the Oklahoma Statutes including Section
10 51.1 of Title 21 of the Oklahoma Statutes. The provisions of
11 subsection C of this section still applies to the criminal offense
12 listed in paragraph 64 of subsection A of this section.

13 F. All Class C2 criminal offenses shall be punishable by the
14 corresponding fines as provided for in the Oklahoma Statutes.

15 SECTION 7. AMENDATORY Section 17, Chapter 366, O.S.L.
16 2024 (21 O.S. Supp. 2024, Section 20Q), is amended to read as
17 follows:

18 Section 20Q. Upon the effective date of this act, the minimum
19 time-served requirements on sentences mandated by the provisions of
20 this act, ~~may~~ shall be included in the instructions to the jury
21 during a criminal trial. If the minimum time-served requirements on
22 sentences are included in the instructions to the jury in a criminal
23 trial, the minimum time-served requirements shall be in the form of
24 a percentage.

SECTION 8. AMENDATORY 22 O.S. 2021, Section 977, is amended to read as follows:

Section 977. A. When judgment upon a conviction is rendered, the clerk must enter the same upon the minutes, stating briefly the offense for which the conviction has been had, and must immediately annex together and file the following papers, which constitute a record of the action:

1. The indictment and a copy of the minutes of the plea or demurrer;

2. A copy of the minutes of the trial;

3. The charges given or refused, and the endorsements, if any, thereon; and

4. A copy of the judgment, which shall include a notation of the month and year of birth date of the defendant and the last four digits of the Social Security number of the defendant. The judgment shall also contain the statutory reference, including any relevant subsections, to the felony crime the defendant was convicted of, the classification level of the felony crime the defendant was convicted of, the required amount of the minimum time to be served according to the sentencing court, and the date of the offense.

B. The court shall obtain the month and year of birth date of the defendant and the last four digits of the Social Security number of the defendant.

SECTION 9. AMENDATORY 57 O.S. 2021, Section 37, is

amended to read as follows:

Section 37. A. If all correctional facilities reach maximum capacity and the Department of Corrections is required to contract for bed space to house state inmates:

1. The Pardon and Parole Board shall consider all nonviolent offenders for parole who are within six (6) months of their scheduled release from a penal facility; and

2. Prior to contracting with a private prison operator to provide housing for state inmates, the Department shall send notification to all county jails in this state that bed space is required to house the overflow population of state inmates. Upon receiving notification, the sheriff or jail trust administrator of a county jail is authorized to enter into agreements with the Department to provide housing for the inmates. Reimbursement for the cost of housing the inmates shall be a negotiated per diem rate for each inmate as contracted but shall in no event be less than the per diem rate provided for in Section 38 of this title.

B. No inmate may be received by a penal facility from a county jail without first scheduling a transfer with the Department. Within five (5) business days after the court orders the judgment and sentence, the court clerk shall transmit to the Department by facsimile, electronic mail, or actual delivery a certified copy of the judgment and sentence.

1 C. The receipt of the certified copy of the judgment and
2 sentence shall be certification that the sentencing court has
3 entered a judgment and sentence and all other necessary commitment
4 documents. The Department of Corrections is authorized to determine
5 the appropriate method of delivery from each county based on
6 electronic or other capabilities, and establish a method for issuing
7 receipts certifying that the Department has received the judgment
8 and sentence document. The Department shall establish a dedicated
9 electronic address location for receipt of all electronically
10 submitted judgment and sentence documents. The electronic address
11 location shall provide written receipt verification of each received
12 judgment and sentence document. Once an appropriate judgment and
13 sentence document is received by the Department of Corrections, the
14 Department shall contact the sheriff or jail trust administrator
15 when bed space is available to schedule the transfer and reception
16 of the inmate into the Department.

17 D. If the Department receives a judgment and sentence document
18 from a county that includes inaccurate information from the
19 sentencing court the Department shall notify the county within a
20 timely manner. If the Department receives a judgment and sentence
21 document from a county that is missing the classification level of
22 the felony crime, the Department shall default to the lowest
23 possible classification level for that offense. If the Department
24 receives a judgment and sentence document from a county that is

1 missing the required amount of the minimum time to be served, the
2 Department shall default to the lowest possible amount of the
3 minimum time to be served for that offense.

4 E. When a county jail has reached its capacity of inmates as
5 provided in the standards set forth in Section 192 of Title 74 of
6 the Oklahoma Statutes, then the county sheriff or jail trust
7 administrator shall notify the Director of the Oklahoma Department
8 of Corrections, or the Director's designated representative, by
9 facsimile, electronic mail, or actual delivery, that the county jail
10 has reached or exceeded its capacity to hold inmates. The
11 notification shall include copies of any judgment and sentences not
12 previously delivered as required by subsection B of this section.
13 Then within seventy-two (72) hours following such notification, the
14 county sheriff or jail trust administrator shall transport the
15 designated excess inmate or inmates to a penal facility designated
16 by the Department. The sheriff or jail trust administrator shall
17 notify the Department of the transport of the inmate prior to the
18 reception of the inmate. The Department shall schedule the
19 reception date and receive the inmate within seventy-two (72) hours
20 of notification that the county jail is at capacity, unless other
21 arrangements can be made with the sheriff or jail trust
22 administrator.

23 F. The Department will be responsible for the cost of housing
24 the inmate in the county jail including costs of medical care

1 provided from the date the judgment and sentence was ordered by the
2 court until the date of transfer of the inmate from the county jail.
3 The Department shall implement a policy for determination of
4 scheduled dates on which an inmate or multiple inmates are to be
5 transferred from county jails. The policy shall allow for no less
6 than three alternative dates from which the sheriff or jail trust
7 administrator of a county jail may select and shall provide for
8 weather-related occurrences or other emergencies that may prevent or
9 delay transfers on the scheduled date. The policy shall be
10 available for review upon request by any sheriff or jail trust
11 administrator of a county jail. The cost of housing shall be the
12 per diem rate specified in Section 38 of this title. In the event
13 the inmate has one or more criminal charges pending in the same
14 Oklahoma jurisdiction and the county jail refuses to transfer the
15 inmate to the Department because of the pending charges, the
16 Department shall not be responsible for the housing costs of the
17 inmate while the inmate remains in the county jail with pending
18 charges. Once the inmate no longer has pending charges in the
19 jurisdiction, the Department shall be responsible for the housing
20 costs of the inmate for the period beginning on the date the
21 judgment and sentence or final order was ordered by the Court. In
22 the event the inmate has other criminal charges pending in another
23 Oklahoma jurisdiction, the Department shall be responsible for the
24 housing costs while the inmate remains in the county jail awaiting

1 transfer to another jurisdiction or until the date the inmate is
2 scheduled to be transferred to the Department, whichever is earlier.
3 Once the inmate is transferred to another jurisdiction, the
4 Department is not responsible for the housing cost of the inmate
5 until such time that another judgment and sentence is received by
6 the Department from another Oklahoma jurisdiction.

7 The sheriff or jail trust administrator may submit invoices for
8 the cost of housing the inmate on a monthly basis. Final payment
9 for housing an offender will be made only after the official
10 judgment and sentence is received by the Department of Corrections.

11 SECTION 10. This act shall become effective January 1, 2026.

12 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
13 April 8, 2025 - DO PASS
14
15
16
17
18
19
20
21
22
23
24